

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC
Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC

23CV001390
24CV002048

STATUS CONFERENCE RE: STATUS OF SUPREME COURT’S DECISION IN *FLOWERS FOOD*

TENTATIVE RULING: The Court is in receipt of the parties’ July 29, 2026 supplemental briefs filed in case no. 24CV002048, as ordered by the Court’s July 15, 2026 Minute Order in case no. 23CV001390. It appears the Court now has everything before it to issue a substantive ruling on the motions to compel arbitration, which originally came on for hearing on March 5, 2026 in case no. 24CV002048 and March 20, 2026 in case no. 23CV001390, and on which the Court issued a partial ruling, but deferred ruling on Plaintiffs’ defenses until the United States Supreme Court had issued its decision in *Flowers Food, Inc., et al. v. Brock* (2026) 146 S.Ct. 1358 (No. 24-935) (*Flowers Food*).

Based on the foregoing, both matters are set for a hearing on August 28, 2026, at 8:30 a.m. in Dept. A on Defendant’s separate Motions to Compel Arbitration (filed on January 28, 2026 in case no. 24CV002048 and filed on February 24, 2026 in case no. 23CV001390). Pursuant to Local Rule 2.9, the Court will post a Tentative Ruling the day prior, which ruling will be based on the parties original briefing, as well as the above-referenced supplemental briefing.

If this ruling is inconsistent with either party’s understanding, that party shall request oral argument pursuant to Local Rule 2.9 and appear at the hearing to discuss with the Court.

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Lorena Zuniga Montelongo v. Bianco Winegrowing

25CV001906

[1] CASE MANAGEMENT CONFERENCE

[2] DEFENDANT BIANCO WINEGROWING’S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING: The motion is GRANTED. Plaintiff Lorena Zuniga Montelongo is ordered to arbitrate her claims against Defendant Bianco Winegrowing (Bianco) pursuant to the parties’ Arbitration Agreement. Ms. Montelongo’s class claims are DISMISSED. The instant action is STAYED pending resolution of the arbitration. The Case Management Conference is VACATED. The Court orders the matter set for a Status of Arbitration hearing on December 9, 2026, at 8:30 a.m. in Dept. A.